

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Donaghy	Team: Squad #14	CCRB Case #: 201907825	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 09/02/2019 5:36 PM	Location of Incident: § 87(2)(b) and the 121st Precinct stationhouse		18 Mo. SOL 10/17/2021	Precinct: 121	
Date/Time CV Reported Tue, 09/03/2019 5:36 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/03/2019 5:36 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Moussa	31415	963664	121 PCT
2. POM James Barbee	22173	952441	121 PCT
3. SGT Mark Rivera	04275	952170	121 PCT
4. POM Tommaso Frasca	09755	963524	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jonathan Bass	04339	932302	121 PCT
2. POM James Besignano	09016	964926	121 PCT
3. SGT Darya Keating	01190	936341	120 PCT
4. SGT Aroosa Yasin	04073	953587	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM James Moussa	Discourtesy: At § 87(2)(b) in Staten Island Police Officer James Moussa spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . SGT Mark Rivera	Discourtesy: At § 87(2)(b) in Staten Island Sergeant Mark Rivera spoke discourteously to § 87(2)(b)	B . Unfounded
C . POM James Moussa	Abuse: At the 121st Precinct stationhouse in Staten Island Police Officer James Moussa did not obtain medical treatment for § 87(2)(b)	C . Substantiated
D . POM James Barbee	Abuse: At the 121st Precinct stationhouse in Staten Island Police Officer James Barbee did not obtain medical treatment for § 87(2)(b)	D . Substantiated
E . POM Tommaso Frasca	Abuse: At the 121st Precinct stationhouse in Staten Island Police Officer Tommaso Frasca did not obtain medical treatment for § 87(2)(b)	E . Substantiated

Case Summary

On September 3, 2019, § 87(2)(b) reported the following complaint via the Call Processing System.

On September 2, 2019, § 87(2)(b) was in his residence at § 87(2)(b) in Staten Island. § 87(2)(b) was involved in a dispute with fellow resident § 87(2)(b) and § 87(2)(b) called the police alleging that § 87(2)(b) had illegally evicted him. Police Officer James Moussa and Police Officer James Barbee of the 121st Precinct responded, and Police Officer Moussa allegedly told § 87(2)(b) there would be a “fucking problem,” if he did not let § 87(2)(b) back into his apartment **(Allegation A: Discourtesy – Word, unsubstantiated)**. Police Officer Moussa called Sergeant Mark Rivera of the 121st Precinct to the scene, who arrived on scene accompanied by Police Officer Tommaso Frasca of the 121st Precinct. Sergeant Rivera determined that § 87(2)(b) was to be placed under arrest, and then allegedly told Police Officer Moussa and Police Officer Barbee to, “Put him in the fucking car” **(Allegation B: Discourtesy – Word, unfounded)**.

While § 87(2)(b) was being driven to the 121st Precinct stationhouse he allegedly requested medical attention from Police Officer Moussa and Police Officer Barbee, but neither officer reported this request or provided § 87(2)(b) with medical attention **(Allegation C: Abuse of Authority – Refusal to obtain medical treatment, substantiated) (Allegation D: Abuse of Authority – Refusal to obtain medical treatment, substantiated)**. § 87(2)(b) was placed into a holding cell at the 121st Precinct stationhouse and remained there for a period of several hours. At approximately 10:55 p.m. on September 2, 2019, Police Officer Tommaso Frasca entered the holding cell area and spoke to § 87(2)(b) and § 87(2)(b) allegedly requested that Police Officer Frasca provide him with medical attention. Police Officer Frasca did not report this request for medical attention and did not provide § 87(2)(b) with medical attention **(Allegation E: Abuse of Authority – Refusal to obtain medical treatment, substantiated)**.

§ 87(2)(b) provided two videos from security cameras within § 87(2)(b) in Staten Island, stored in IA # 10 (Board Review 01) and IA # 11 (Board Review 02) an accompanying audio file, stored in IA # 9 (Board Review 03), and a cell phone video recorded by witness § 87(2)(b) stored in IA # 12 (Board Review 04). All of the aforementioned videos are summarized in IA # 101 (Board Review 05).

The investigation obtained body-worn camera (BWC) footage of this incident; from Police Officer James Moussa in IA # 70 (Board Review 06), Police Officer James Barbee in IA # 71 (Board Review 07), and Police Officer Tommaso Frasca in IA # 72 (Board Review 08), all of which are summarized in IA # 73 (Board Review 09). The investigation also obtained footage from the 121st Precinct stationhouse; the original is located in IA # 37 (Board Review 10), and exports playable in VLC media player are located in IA # 38 (Board Review 11), IA # 39 (Board Review 12), IA # 40 (Board Review 13), and IA # 41 (Board Review 14), all of which are summarized in IA # 84 (Board Review 15).

Findings and Recommendations

Allegation (A) Abuse of Authority – At § 87(2)(b) in Staten Island Police Officer James Moussa spoke discourteously to § 87(2)(b)

On September 6, 2019, § 87(2)(b) was interviewed at the CCRB. On November 19, 2020, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 16). On February 10, 2020, Police Officer James Barbee was interviewed at the CCRB. On February 11, 2020, Police

Officer Tommaso Frasca was interviewed at the CCRB. On February 13, 2020, Sergeant Mark Rivera was interviewed at the CCRB. On February 21, 2020, Police Officer James Moussa was interviewed at the CCRB. On October 14, Sergeant Jonathan Bass was interviewed via Microsoft Teams.

During his CCRB interview § 87(2)(b) who is a resident of the multi-unit dwelling at § 87(2)(b) in Staten Island, stated that on September 2, 2019, he was in a dispute with another resident of § 87(2)(b). § 87(2)(b) believed that § 87(2)(b) had locked him out of his room. At approximately 5:30 p.m., § 87(2)(b) went to the front door of § 87(2)(b) opened it, and saw that § 87(2)(b) was accompanied by two officers, Police Officer Moussa and Police Officer Barbee. Police Officer Moussa asked § 87(2)(b) “You changed his locks?” and then stated, “If you do not change those locks there is going to be a fucking problem.” Police Officer Moussa then stated several additional curse words that § 87(2)(b) was unable to recall during his CCRB interview, before moving with § 87(2)(b) towards the staircase leading to the second floor of § 87(2)(b).

During his CCRB interview Police Officer Moussa stated that he could not recall if any officer had stated there would be a “fucking problem,” to § 87(2)(b). Police Officer Barbee stated that he did not tell § 87(2)(b) there would be a “fucking problem,” and stated that he did not recall if Police Officer Moussa had stated that.

Though § 87(2)(b) provided video that captured the moment he first encountered Police Officer Moussa and Police Officer Barbee during this incident, that video ended before the moment of the alleged discourtesy. § 87(2)(b)'s video can be found in IA # 10 (Board Review 01) and is summarized in IA # 101 (Board Review 05). In the video § 87(2)(b) is seen to approach the front door of § 87(2)(b) and open it. Police Officer Moussa, Police Officer Barbee, and § 87(2)(b) are standing outside the front door. Police Officer Moussa points at § 87(2)(b) and states, “Did you change the lock?” The video then ends. The next video in chronological order that the investigation has of this incident is the BWC footage recorded by Police Officer Moussa, located in IA # 70 (Board Review 06) and summarized in IA # 73 (Board Review 09). As that video begins Police Officer Moussa is already on the second floor of § 87(2)(b) with § 87(2)(b) placing it chronologically after the moment of the alleged discourtesy.

A review all footage recorded at § 87(2)(b) during this incident, summarized in IA # 73 (Board Review 09) and IA # 101 (Board Review 05) showed that at no point was Police Officer Moussa captured saying the words “fuck” or “fucking.”

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **unsubstantiated**.

Allegation (B) Abuse of Authority – At § 87(2)(b) in Staten Island Sergeant Mark Rivera spoke discourteously to § 87(2)(b)

During his CCRB interview, § 87(2)(b) stated that he was arrested and placed into handcuffs at § 87(2)(b) in Staten Island on the orders of an officer who the CCRB has identified as Sergeant Mark Rivera. Sergeant Rivera arrived on scene accompanied by his driver Police Officer Tommaso Frasca. After arresting § 87(2)(b) Police Officer Moussa and Police Officer Barbee escorted § 87(2)(b) to their police vehicle. As he was being moved, § 87(2)(b) repeatedly yelled

out to the other residents of [§ 87(2)(b)]. At that time, Sergeant Rivera told Police Officer Moussa and Police Officer Barbee to “Put him in the fucking car!”

Sergeant Rivera, Police Officer Frasca, and Police Officer Barbee stated, during their respective interviews at the CCRB, that they did not hear any officer state that [§ 87(2)(b)] should be put in a “fucking car,” during this incident. Police Officer Moussa stated that he was unable to recall if any officer had stated that [§ 87(2)(b)] should be put in a “fucking car”.

The BWC footage recorded by Police Officer Moussa, which is located in IA # 70 (Board Review 06) and summarized in IA # 73 (Board Review 09), captured the moment that Sergeant Rivera allegedly stated that [§ 87(2)(b)] should be placed in the “fucking car.” At timecode 17:50 on VLC player [§ 87(2)(b)] has already been arrested, is in handcuffs, and is being walked towards Police Officer Moussa and Police Officer Barbee’s police vehicle. While standing next to the vehicle on Van Pelt Avenue, [§ 87(2)(b)] repeatedly yells out to [§ 87(2)(b)] that she should report all of the officers on scene. At timecode 18:00, Sergeant Rivera states, “Put him in the car already and get him out of here.” [§ 87(2)(b)] is then placed into Police Officer Moussa and Police Officer Barbee’s police vehicle.

A review all footage recorded at [§ 87(2)(b)] during this incident, summarized in IA # 73 (Board Review 09) and IA # 101 (Board Review 05) showed that at no point did any officer state that [§ 87(2)(b)] should be placed in the “fucking car.”

[§ 87(2)(b)] stated that Sergeant Rivera told Police Officer Moussa and Police Officer Barbee to place him in the “fucking” car. However, footage of this incident shows that at no point did Sergeant Rivera order [§ 87(2)(b)] be placed in a “fucking” car. It is therefore recommended that **Allegation B** be **unfounded**.

Allegation (C) Abuse of Authority – At the 121st Precinct stationhouse in Staten Island Police Officer James Moussa did not obtain medical treatment for [§ 87(2)(b)]

Allegation (D) Abuse of Authority – At the 121st Precinct stationhouse in Staten Island Police Officer James Barbee did not obtain medical attention to [§ 87(2)(b)]

It is undisputed that during the car ride from [§ 87(2)(b)] to the 121st Precinct stationhouse [§ 87(2)(b)] requested medical attention from Police Officer Moussa and Police Officer Barbee. The BWC footage recorded by Police Officer Moussa, which is located in IA # 70 (Board Review 06) and summarized in IA # 73 (Board Review 09), captured the moment that [§ 87(2)(b)] requested medical attention. At timecode 23:32 on VLC, [§ 87(2)(b)] states, “I need medical attention.” Police Officer Moussa replies that [§ 87(2)(b)] will receive it when they arrive at the stationhouse and then asks [§ 87(2)(b)] what is wrong with him. [§ 87(2)(b)] replies, “I need medical attention. I don’t have none of my medication, [§ 87(2)(b)]. And these cuffs hurt.” Police Officer Moussa again states that [§ 87(2)(b)] will receive medical attention.

It is undisputed that Police Officer Moussa and Police Officer Barbee never summoned medical attention for [§ 87(2)(b)]. It is further undisputed that [§ 87(2)(b)] only obtained medical attention after requesting it from Sergeant Aroosa Yasin, which occurred after Police Officer Moussa and Police Officer Barbee had departed the 121st Precinct stationhouse at the end of their Tours.

During his CCRB interview, [§ 87(2)(b)] stated that after arriving at the 121st Precinct stationhouse he was escorted inside and was placed into a holding cell. After a period of what [§ 87(2)(b)] thought to be hours, Police Officer Moussa entered the holding cell area and [§ 87(2)(b)] again requested medical attention, stating that his finger and his hand were hurting. Police Officer Moussa replied

that officers were unable to give § 87(2)(b) medication while he was in custody, but that § 87(2)(b) can be taken to the hospital if he requests it. § 87(2)(b) asked to be taken to the hospital, and Police Officer Moussa replied by stating that he should not worry and by reiterating that § 87(2)(b) would be taken to the hospital. After this exchange, Police Officer Moussa fingerprinted § 87(2)(b) took an arrest photo of him, and placed him back into his holding cell.

§ 87(2)(b) fell asleep, only re-awakening after a period of what he thought to be several hours. At approximately 10:30 or 10:40 p.m. on September 2, 2019, § 87(2)(b) who was alone in the 121st Precinct holding cell area, attempted to gain the attention of officers at the front desk of the 121st Precinct stationhouse by waving his arms and yelling. However, no officer responded to § 87(2)(b)'s requests for help. § 87(2)(b) alleged that he was left unattended for such an extended period of time in the 121st Precinct stationhouse that he was forced to urinate into a bottle, due to being unable to access a restroom. While attempting to attract the attention of any officers, § 87(2)(b) saw Police Officer Moussa and Police Officer Moussa walk through the lobby of the 121st Precinct stationhouse wearing plainclothes. § 87(2)(b) did not see Police Officer Moussa or Police Officer Barbee again after that.

During his CCRB interview Sergeant Jonathan Bass, who was working as the Desk Sergeant at the 121st Precinct stationhouse at the time of this incident, acknowledged that he wrote the Command log entry for § 87(2)(b)'s arrest during this incident but stated he had no further recollection of doing so. Sergeant Bass stated that he had no recollection of any interaction with § 87(2)(b). Sergeant Bass stated that he was never informed on September 2, 2019, of a prisoner within the 121st Precinct stationhouse who required medical attention or who retracted a previous request for medical attention.

During his CCRB interview, Police Officer Barbee did not initially recall § 87(2)(b)'s request for medical attention. After being presented with Police Officer Moussa's BWC footage, Police Officer Barbee stated that he believed that § 87(2)(b)'s request for medical attention happened, even if he did not directly recall it. However, Police Officer Barbee then stated that he recalled a conversation that he had with Police Officer Moussa on September 2, 2019, after § 87(2)(b) had been placed into a holding cell. Police Officer Moussa stated to Police Officer Barbee that § 87(2)(b) had said, while in the holding cell, that he no longer wished to receive medical attention. § 87(2)(b) had then stated to Police Officer Moussa that he wanted to see if he would receive a Desk Appearance Ticket (DAT). Police Officer Barbee stated that, after having this conversation with Police Officer Moussa, he had no further interactions with § 87(2)(b).

Police Officer Moussa stated that, approximately five minutes after placing § 87(2)(b) into a holding cell in the 121st Precinct stationhouse, he told § 87(2)(b) that he was about to call an ambulance for him. § 87(2)(b) replied that he wanted to see if he would receive a DAT, and that if he needed medical attention, he would pursue it after being released. For that reason, Police Officer Moussa did not summon medical attention for § 87(2)(b). Police Officer Moussa stated that, though he did not recall if he knew at the time of that conversation if § 87(2)(b) would receive a DAT, he did know prior to the end of his tour that § 87(2)(b) would not receive a DAT. Police Officer Moussa was unable to recall if he even "put in" § 87(2)(b) for a DAT, as he believed § 87(2)(b) was unlikely to be eligible for one due to his arrest history. Police Officer Moussa never communicated to § 87(2)(b) that he would not be receiving a DAT, and § 87(2)(b) never requested medical attention after retracting his original request. Police Officer Moussa did not ask § 87(2)(b) if he required medical attention at any point after § 87(2)(b) retracted his request.

The 121st Precinct command log, located in IA # 44 (Board Review 17), listed the arrest of § 87(2)(b) at 18:05 on September 2, 2019. In that entry, § 87(2)(b)'s physical and mental condition is

listed as “Apparently normal,” and the “Medical Attn. Requested” section is marked as “No.”

During their CCRB interviews, both Police Officer Moussa and Sergeant Bass stated that the procedure for logging an arrest in the Command Log involves an arresting officer communicating the arrest information to a stationhouse Desk Sergeant by filling out a Pedigree Card. Police Officer Moussa stated that during this arrest he filled out the Pedigree Card for § 87(2)(b). It is undisputed that Police Officer Moussa filled out the Pedigree card for § 87(2)(b)'s arrest before the alleged conversation where § 87(2)(b) retracted his request for medical attention.

The CCRB obtained a Medical Treatment of Prisoner form from this incident, which is located in IA # 34 (Board Review 18). It states that at 12:16 a.m. on September 3, 2019, § 87(2)(b) refused medical treatment in the field and was removed from the 121st Precinct stationhouse by EMTs. The report was filed on September 3, 2019, at 2:40 a.m., by Police Officer James Designano.

Stationhouse footage of the 121st Precinct stationhouse captured the interactions between Police Officer Moussa, Police Officer Barbee, and § 87(2)(b) and is located in IA # 38 (Board Review 11), IA # 39 (Board Review 12), IA # 40 (Board Review 13), and IA # 41 (Board Review 14), all of which are summarized in IA # 84 (Board Review 15). After being placed into a holding cell, § 87(2)(b) and Police Officer Barbee appear to speak for approximately eight minutes before Police Officer Barbee leaves the room. Police Officer Barbee is seen to return several minutes later to provide § 87(2)(b) with what appears to be a bottle of water. The footage then captures what appears to be eight separate interactions between Police Officer Moussa and § 87(2)(b) over the next three hours, including one in which Police Officer Moussa appears to fingerprint and take an arrest photo of § 87(2)(b). The footage also captures two further interactions between § 87(2)(b) and Police Officer Barbee during that same three-hour window.

Then, for a period of over an hour between timecode 4:12:00 and timecode 5:15:00 on VLC player, no officer appears to step into the holding cell area where § 87(2)(b) was being held alone. From 4:54:30 until 5:05:00, § 87(2)(b) appears to speak towards, wave his arms at, and look through a window facing the front desk of the 121st Precinct stationhouse. During that time period § 87(2)(b) appears to urinate into a water bottle. A review of the remainder of the footage, located in IA # 84 (Board Review 15) showed that Police Officer Moussa and Police Officer Barbee did not have any further interactions with § 87(2)(b) during this incident.

Patrol Guide Procedure No. 210-04 (Board Review 19) states that when a prisoner in custody requires medical or psychiatric treatment, an officer is to request an ambulance and remove the prisoner to the hospital. The uniformed member of service is also required to prepare a Medical Treatment of Prisoner form for each prisoner who receives medical/psychiatric treatment or who refuses treatment after claiming injury or illness.

Police Officer Moussa and Police Officer Barbee were both in the police vehicle at the time when § 87(2)(b) stated that he needed medication and medical attention, and Police Officer Moussa told § 87(2)(b) that he would receive that medical attention. However, upon arriving at the 121st Precinct stationhouse, Police Officer Moussa did not report that § 87(2)(b) had requested medical attention when documenting the arrest for the 121st Precinct Command log. Police Officer Moussa and Police Officer Barbee allege that after being placed in a holding cell § 87(2)(b) stopped his request for medical attention in the hopes that he would receive a DAT and be released. § 87(2)(b) did not state that such a conversation occurred. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C** and **D** be **substantiated**.

Allegation (E) Abuse of Authority – At the 121st Precinct stationhouse in Staten Island Police Officer Tommaso Frasca did not obtain medical attention to § 87(2)(b)

During his CCRB interview, § 87(2)(b) stated that a few minutes after seeing Police Officer Moussa and Police Officer Barbee leave the 121st Precinct stationhouse in plainclothes, Police Officer Frasca entered the holding cell area. § 87(2)(b) stated to Police Officer Frasca that he had asked for medical attention hours beforehand and had still not received it. Police Officer Frasca left the holding cell area, and § 87(2)(b) was able to see Police Officer Frasca go to speak with Sergeant Rivera. § 87(2)(b) observed Police Officer Frasca and Sergeant Rivera have an extended conversation. Afterwards, Police Officer Frasca briefly re-entered the holding cell area, told § 87(2)(b) that, “they are going to call someone for you,” and then Police Officer Frasca exited again. § 87(2)(b) did not see Police Officer Frasca again during this incident.

During his CCRB interview Police Officer Frasca stated that he did not have interactions with § 87(2)(b) after leaving the scene at § 87(2)(b) in Staten Island. Sergeant Rivera stated that he was unable to recall any interactions with § 87(2)(b) after § 87(2)(b) was placed into a holding cell at the 121st Precinct stationhouse. Sergeant Rivera further stated that he did not recall having any conversations with Police Officer Frasca regarding § 87(2)(b) requesting medical attention at any point on September 2, 2019.

Stationhouse footage of the 121st Precinct stationhouse captured the interaction between Police Officer Frasca and § 87(2)(b) and is located in IA # 38 (Board Review 11), IA # 39 (Board Review 12), IA # 40 (Board Review 13), and IA # 41 (Board Review 14), all of which are summarized in IA # 84 (Board Review 15). At timecode 5:15:00 in VLC, Police Officer Tommaso Frasca enters the holding cell room and appears to briefly speak to § 87(2)(b) before exiting the room again. At 5:17:00, Police Officer Frasca appears to open the door to the holding cell room again, speak to § 87(2)(b) and then exit again. What Police Officer Frasca does in the time between the two interactions is not visible in the stationhouse footage obtained by the CCRB.

It is undisputed that § 87(2)(b) immediately requested medical attention from Sergeant Aroosa Yasin, the very next person to enter the holding cell area of the 121st Precinct stationhouse after Police Officer Frasca. According to the stationhouse footage, § 87(2)(b)'s conversation with Sergeant Yasin occurred 25 minutes after his second interaction with Police Officer Frasca.

§ 87(2)(g)

Allegation E be substantiated.

Civilian and Officer CCRB Histories

- This is the third CCRB complaint to which § 87(2)(b) has been a party (Board Review 23).
 - § 87(2)(b)
- Police Officer James Moussa has been a member-of-service for three years and has been a subject in four CCRB cases and nine allegations, all of which are still under investigation. § 87(2)(g)
- Police Officer James Barbee has been a member-of-service for eight years and has been a subject in five CCRB cases and seven allegations, of which none were substantiated. § 87(2)(g)
- Sergeant Mark Rivera has been a member-of-service for eight years and has been a subject in five CCRB cases and nine allegations, of which none were substantiated. § 87(2)(g)
- Police Officer Tommaso Frasca has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- On June 18, 2020, the CCRB received a response to a FOIL request to the Office of the New York City Comptroller, which stated that there was no notice of claim related to this incident.

Squad No.: 14

Investigator: Matthew Donaghy Inv. Matthew Donaghy October 27, 2020
Signature Print Title & Name Date

Squad Leader: Cassandra Fenkel IM Cassandra Fenkel October 28, 2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date